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The Vanashkati Verdict Is Balanced and Pragmatic

The Vanashakti verdict is balanced and pragmatic

The Supreme Court of India's landmark judgment delivered on July 29, 2026 in *Vanashakti vs Union of India* has brought much-needed clarity to one of the most debated issues in environmental regulation: the fate of projects that commenced without obtaining prior Environmental Clearance (EC).

Wider policy impact

While the judgment firmly reiterates that obtaining prior EC is a mandatory legal requirement under the Environment Impact Assessment Notification (EIA) Notification, 2006, it also provides an important policy direction that could have far-reaching implications for thousands of industries, infrastructure projects and real estate developments across India.

The Court has categorically held that project proponents who commenced construction or operations without obtaining prior EC and that did not apply under the earlier violation mechanisms, cannot now seek regularisation under the 2017 Notification or the 2021 Standard Operating Procedure (Office Memorandum). Those mechanisms are no longer available for fresh cases.

At first glance, this may appear to shut the door completely on pending violation projects. However, a closer reading of the judgment reveals a far more balanced and pragmatic approach. One of the most significant aspects is the Court's recognition that the central government continues to possess the statutory power under Section 3 of the Environment (Protection) Act, 1986 to frame a fresh statutory mechanism for dealing with violation cases, if considered necessary in the larger public interest.

The Court has made an important distinction between an administrative office memorandum, which cannot override the requirement of prior EC, and a statutory notification issued under the powers conferred by the Environment (Protection) Act. While the former has been held to be legally unsustainable, the latter remains a permissible legislative option, provided it is



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The top court's verdict closes existing environmental clearance regularisation routes while leaving scope for a new framework

carefully designed within the framework of environmental law.

This observation is likely to have significant policy implications. Across India, numerous industrial units, commercial developments, infrastructure projects and public utility projects remain in violation of the EC requirements for various reasons. Some projects proceeded due to regulatory uncertainty, others due to an incorrect interpretation of the law, while some simply failed to obtain the necessary approvals before commencement. Many such projects never applied under the earlier violation windows and have therefore been left without a legal pathway following the closure of the 2017 scheme and the striking down of the 2021 Office Memorandum.

The present judgment acknowledges this practical reality without compromising the fundamental principle that prior EC remains mandatory.

Where there is a balancing act

Importantly, the Court has not directed the central government to introduce a new regularisation scheme. Instead, it has clarified that the government may, if it considers it necessary, in the larger public interest, issue a fresh statutory notification providing a one-time opportunity for specified categories of violation projects.

The Court has also indicated the safeguards that such a notification must incorporate. Any future scheme cannot become a permanent "violate first, regularise later" mechanism. Instead, it should be strictly one-time, supported by statutory authority, and should include comprehensive environmental safeguards such as environmental damage assessment, remediation measures, environmental compensation and strict compliance conditions.

This balanced approach attempts to reconcile two equally important objectives. On one hand, environmental laws cannot encourage deliberate violations by allowing routine post-facto approvals, while on the other, indiscriminate

closure or demolition of every violation project may not always serve either environmental protection or the larger public interest, particularly where projects are otherwise environmentally acceptable and substantial investments have already been made.

The judgment therefore reinforces the principle that environmental governance should combine strict enforcement with practical and scientifically sound regulatory solutions.

For project developers, industries and infrastructure agencies, the immediate message is straightforward. No fresh applications can now be made under the earlier violation mechanisms. However, the judgment also leaves open the possibility that the central government may formulate a fresh statutory framework to address pending violation cases in an environmentally responsible manner.

The regulatory road ahead

Whether such a policy initiative will be undertaken now rests entirely with the central government. Given the large number of pending projects across various sectors, industry associations, infrastructure developers, environmental professionals and other stakeholders are expected to closely watch the government's next steps. The judgment has effectively closed the old regulatory route but has simultaneously acknowledged that Parliament's environmental legislation still provides sufficient statutory authority for a carefully structured one-time solution, should the government consider such intervention necessary.

The July 2026 judgment is therefore significant not merely because it settles the legal validity of earlier violation mechanisms, but also because it charts the contours of any future policy on environmental regularisation. It preserves the integrity of the prior EC regime while leaving sufficient legislative space for the government to address genuine legacy violations through a lawful, transparent, and environmentally robust statutory framework.

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- **About Environmental Impact Assessment (EIA)**
 - Environment Impact Assessment (EIA) Notification, 2006, under Environment Protection Act 1986 is the principal regulatory framework governing ECs for development projects in India.
 - It is a process to evaluate the potential environmental and social effects, both positive and negative, of a proposed project before it is approved
 - **Mandatory for projects above Rs 50 crores.**
 - **Exemptions:** Highway projects of strategic importance, 100 km from the borders, biomass-based Thermal power plants up to 15 MW using eco-friendly fuel mix, Solar and Wind Power projects, Hydro-electric projects less than 25 MW, etc.
- **Category 'A' projects:** Require prior ECs from centre on the recommendations of a 15 membered body i.e. Expert Appraisal Committee.
 - **Category 'B' projects** require prior ECs from the SEIAA on the recommendations of a SEAC and are sub divided in Category B1 and **B2 (B2- exempt from EIA).**

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- **Screening Stage:** Screening refers scrutiny of category ‘B’ projects seeking prior environmental clearance made in Form-1 by the concerned State Level Expert Appraisal Committee for determining whether or not the project requires further environmental studies for preparation of EIA for its appraisal depending upon the nature and location specificity of the project.
- **Scoping Stage:** What effects could this project have on the environment? Which of these effects are likely to be significant and therefore need particular attention in the environmental studies? Which alternatives and mitigation measures ought to be considered in developing the proposal for the project
- **Public Consultation stage:** To ascertain views of local persons. Outcome of public consultation, which is not a decision making process, to be included in EIA and addressed
- **Appraisal stage:** Appraisal means the detailed scrutiny by the Expert Appraisal Committee or State Level Expert Appraisal Committee of the application and other documents submitted by the applicant for grant of environmental

Centre Set to Expand Mechanised Sanitation Scheme to Rural India

Centre set to expand mechanised sanitation scheme to rural India

Abhinav Lakshman
NEW DELHI

Even as the government plans to expand its scheme to mechanise sanitation work, the National Commission for Scheduled Castes (NCSC) has been flagging the continued rejection of applications under the self-employment and capital subsidy components of the project.

The Social Justice Ministry has already moved a proposal to expand the scope of the National Action for Mechanised Sanitation Ecosystem (NAMASTE) scheme from towns and cities to rural parts of the country as well, officials said. As per this proposal, the scheme, started in 2023-24 with the aim of eradicating sewer and septic tank deaths, will now be expanded to include drain cleaners, and workers in sewage treatment plants (STPs), and



The scheme also covers waste pickers in its ambit.

faecal sludge treatment plants. The Ministry has proposed an outlay of around ₹498.73 crore for the expanded scheme, to be spent from this fiscal year to 2030-31.

The Social Justice Ministry told Parliament this August that 498 people had died across the country while engaged in the hazardous cleaning of sewers and septic tanks, from 2019 to June 2026.

The NAMASTE scheme

had initially covered sewer and septic tank workers (SSWs) and was first expanded to include waste pickers. So far, 90,915 SSWs have been profiled across the country, along with 1.3 lakh waste pickers, according to the Ministry's annual report for 2025-26.

The main components of the scheme help manual scavengers and SSWs to set up their own sanitation-related projects by providing capital subsidies of up to 50% of the total project cost, and aid in setting up emergency response sanitation units in urban local bodies. Other components include training workshops and the provision of personal protective equipment for the profiled workers.

Few project approvals

Only 810 SSWs have been approved for capital subsidies under the scheme, of which 147 have actually re-

ceived their funds, as of March 31 this year, according to Ministry data. Similarly, only 2,652 projects have been approved for the 58,000 manual scavengers identified under the scheme. This includes projects proposed by Private Sanitation Service Organisations (PSSOs) and by individuals.

In repeated letters to the Social Justice Ministry since last year, the NCSC has highlighted that one reason for the low number of approved projects is the high rate of rejections. It has noted that there have been rejections under each part of the capital subsidy component, which need to be examined. In an August 2025 letter, the NCSC flagged rejections in the self-employment components of the scheme, both in the Safai Udyami Yojana, under which SSWs receive capital subsidies and in the component for PSSOs.

Centre Set to Expand Mechanised Sanitation Scheme to Rural India

- NAMASTE is a human-centric, rights-based initiative aimed at eliminating hazardous manual scavenging of sewers and septic tanks, launched in 2023 as a Central Sector Scheme for a period of 3 years (2023–24 to 2025–26).
- Jointly launched by the Ministry of Social Justice & Empowerment (MoSJE) and the Ministry of Housing & Urban Affairs (MoHUA) and being implemented by the National Safai Karamcharis Finance and Development Corporation (NSKFDC).

Provisions

- Profiling of Sewer and Septic Tank Workers: Creating national database with unique NAMASTE ID for each worker.
- Health Insurance: SSWs will be covered under Ayushman Bharat- Pradhan Mantri Jan Arogya Yojana health insurance scheme.
- Safety Measures: SSWs will receive Personal Protective Equipment (PPE) kits & access to safety devices.
- Training: Occupational safety training will be provided.
- Financial Incentive: Capital subsidy of up to Rs. 5 lakh for sanitation-related vehicles/equipment will create livelihood opportunities through subsidized machinery.
- Sanipreneurship: Capacity building will encourage SSWs to start their sanitation enterprises.

India and Japan to Enhance Cooperation in Maritime Security

India and Japan to enhance cooperation in maritime security to guard Indo-Pacific

Amrita Nayak Dutta
New Delhi, August 20

INDIA AND Japan agreed to enhance operational maritime security cooperation and protect vital Sea Lines of Communication across the Indo-Pacific following high-level bilateral talks on Thursday.

Defence Minister Rajnath Singh and his Japanese counterpart Shinjiro Koizumi signed a Memorandum of Arrangement on Maritime Security Cooperation during their meeting in New Delhi. The pact establishes a comprehensive framework to strengthen ties between the Indian Navy and the Japan Maritime Self-Defence Force. Key areas of focus include Maritime Domain Awareness, Search and Rescue operations, and Humanitarian Assistance and Disaster Relief.

A joint statement stated that both the ministers emphasised the importance of sharing assessments of the regional and international security environment — especially amid heightened global tensions. They also strongly opposed unilateral actions that threaten the freedom and safety of navigation and overflight, and attempts to change the status quo through force or coercion, without explicitly naming any nation.

They two ministers affirmed that they would strengthen coordination between the two sides to protect Sea Lines of Communication through mutual visits by naval ships and units, joint exercises, personnel and Subject Matter Expert exchanges, and logistical support. They also agreed that both sides should leverage each other's strengths in defence shipbuilding and related areas, and deepen discussions on Japan's use of India's production capabilities within the framework of 'Make in India'.

Singh and Koizumi concurred on progressing reciprocal provision of ship repair facilities, including the conclusion of a ship repair arrangement in the near future. They welcomed the steady strengthening of defence cooperation including cooperation among the respective Ministries and the Services of the two countries that share strategic perspectives, under the Japan-



Defence Minister Rajnath Singh and his Japanese counterpart Shinjiro Koizumi in New Delhi on Thursday. (PI)

India Special Strategic and Global Partnership, which constitutes one of the pillars for peace, stability and prosperity in the Indo-Pacific, the statement read.

Recalling the Japan-India joint statement by the leaders of the two nations in July 2026, Singh and Koizumi affirmed their commitment, under their leadership, to further deepen defence cooperation to realise a free and open Indo-Pacific. They welcomed the steady expansion and deepening of bilateral exercises conducted by Japan and India, including the Japan-India Army exercise 'Dharma Guardian' and the Japan-India Maritime Exercise JAMEX, as well as the progress in coordination for the Japan-India Air Force exercise 'Veer Guardian 26', scheduled to be held this year.

The two ministers concurred on further promoting cooperation through the Indo-Pacific Logistics Network (IPLN) to support partner nations in the event of a natural disaster by transporting personnel and supplies. The second tabletop exercise of the IPLN is scheduled to be held at the Japan Ministry of Defence in September this year.

Meanwhile, Koizumi on Thursday called on Prime Minister Narendra Modi who outlined his vision for further strengthening the Special Strategic and Global Partnership between the two nations. "Japan's Minister of Defence Shinjiro Koizumi, who is on an official visit to India, called on Prime Minister Narendra Modi today," a statement by the PMO read.

India and Japan to Enhance Cooperation in Maritime Security

- **The Agreement**

- India and Japan agreed to enhance operational maritime security cooperation and protect vital Sea Lines of Communication across the Indo-Pacific following high-level bilateral talks in New Delhi.
- Defence Minister Rajnath Singh and his Japanese counterpart Shinjiro Koizumi signed a Memorandum of Arrangement on Maritime Security Cooperation, establishing a framework to strengthen ties between the Indian Navy and the Japan Maritime Self-Defense Force.

- **Shared Concerns Without Naming China**

- A joint statement emphasised sharing assessments of the regional security environment amid heightened global tensions, and strongly opposed unilateral actions threatening freedom of navigation or attempts to change the status quo through force or coercion without naming any nation.
- Both ministers affirmed they would strengthen coordination to protect Sea Lines of Communication through mutual ship visits, joint exercises, and personnel exchanges.

- **Deepening Industrial and Strategic Ties**

- Both sides agreed to leverage each other's strengths in defence shipbuilding, and deepen discussions on Japan's use of India's production capabilities within the 'Make in India' framework.
- Singh and Koizumi concurred on progressing reciprocal ship repair facilities, including concluding a ship repair arrangement in the near future.

- **Institutional Continuity**

- The pact builds on the Japan-India joint statement from July 2026, reaffirming commitment to deepen defence cooperation for a 'free and open Indo-Pacific'.
- The ministers welcomed expansion of exercises like 'Dharma Guardian' and 'JAIMEX', progress on 'Veer Guardian 26'

Thank You